

ISA CERTIFIED PERSONAL TRAINER COURSE

WEEK 1 - INTRODUCTION

- CHAPTER 1
(ROLE AND SCOPE OF PRACTICE FOR
PERSONAL TRAINERS)
- CHAPTER 16
(LEGAL GUIDELINES AND BUSINESS
CONSIDERATIONS)



CHAPTER 1

ROLE AND SCOPE OF PRACTICE FOR PERSONAL TRAINERS

CONTENT COVERED



Health Benefits
(Pg 5, Table 1-1)



Defining S.O.P for
ACE CPT (Pg 11)



General S.O.P for PTs
(Pg 11, Table 1-2)



Professional Responsibilities
& Code of Ethics - Client
Privacy, Safety (Pg 16-19)



Appropriate S.O.P
(Pg 20, Table 1-3)



Role of Health
Professionals (Pg 22)



The Healthcare Continuum
– List of Exercise
Professionals (Pg 21)



Career Development
(Pg 27)

INTRODUCTION: HEALTH BENEFITS & RISK FACTORS

Youths & Adolescents

- Improved Bone Density
- Improved Cognition
- Improved Weight Status
- Improved Cardio, Muscular and Metabolic Health
- Reduced Risk of Depression



Adults & Older Adults

- Lower Risk of Hypertension
- Reduced Risk of Dementia
- Improved Cognition
- Reduced Risk of Type 2 Diabetes
- Reduced Cardiovascular Diseases (including stroke)



INTRODUCTION TO PERSONAL TRAINING

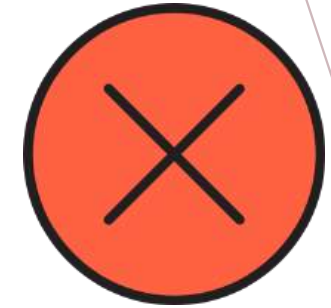
What is a personal trainer?

“A personal trainer works with **apparently healthy individuals** and those with health challenges who are able to exercise independently to enhance quality of life, improve health-related physical fitness, performance, manage health risk, and promote lasting health behavior change.

ACE SCOPE OF PRACTICE



What you CAN and CANNOT do as a Personal Trainer



ACE CPT GENERAL SCOPE OF PRACTICE

Actions outside Scope of Practice	Actions within Scope of Practice
Diagnose illness	• Follow accepted industry guidelines • Assessing exercise limitations
Prescribe drugs and supplements	• Refer to registered dietician
Treating injury or rehabilitating clients following injury	• Design program after client released from rehabilitation
Monitor clinical progress for medically referred clients	• Documenting progress and reporting to healthcare professional
Counseling clients	• Using coaching technique to support clients through behaviour change • Providing general health and wellness information

Table 1-2: General Scope of Practice for Personal Trainers

ACE CPT SCOPE OF PRACTICE

Design	• Implement client-centric and evidence-based approach through personalised exercise programs and using behaviour change skills and strategies to coach clients • Design and implement programs that are safe and effective and structured for medical cleared clients
Assessments	• Conduct pre participation health medical screening • Administer appropriate test for cardio and muscular training based on client history
Coaching, Cueing & Teaching	• Teaching correct exercise methods, appropriate movement progression and regression through proper cueing and spotting techniques • Empowering clients to adhere to program using motivation, lapse-relapse prevention strategies
Education	• Educate clients on general fitness information to adopt healthy lifestyle • Protect Client confidentiality through HIPAA
Professionalism	• Act with integrity and ethically • Be clear on scope of practice, being prepared for emergency situations and how to respond

Figure 1-2: The ACE Certified Personal Trainer Scope of Practice

KNOWLEDGE AND SKILLS OF AN ACE CERTIFIED PERSONAL TRAINER



Domain I (23%)
Interviews and
Assessments

Develop rapport with clients
to obtain relevant health
and science information for
necessary program design



Domain II (31%)
Program Design
and Implementation

Create individualised
program and promote
healthy behaviours



Domain III (26%)
Program Modification
and Progression

Monitor, evaluate and
modify programs to promote
adherence toward goals



Domain IV (20%)
Professional Conduct, Safety
and Risk Management

Fulfil professional
responsibilities and adhere
to industry standards

Detailed information on the knowledge and skills required in each Domain can be found at
<https://acewebcontent.azureedge.net/assets/certification/pdfs/CPT-Exam-Content-Outline.pdf> 9

PROFESSIONAL RESPONSIBILITIES AND CODE OF ETHICS



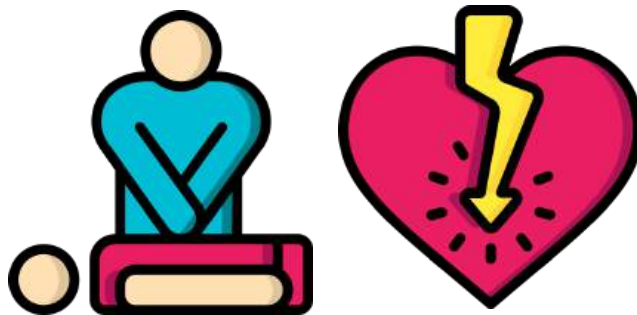
Code of Ethics



Certifications and Renewals



Safety



CPR-AED Certifications



Client Data Privacy

CODE OF ETHICS

Code		Expectations
1	Provide safe and effective instruction	Pre-participation, assessments and screening, program implementation, facilities, equipment
2	Provide equal and fair treatment to all clients/ participants	Without bias, preference or discrimination on gender, race, national origin, religion or disability.
3	Stay up-to-date on latest health and fitness research and understand practical application	To keep up with the dynamic industry, make time to review professional journal, periodicals, conferences and educational workshops. Also the need to renew ACE certification every 2 year with 2.0 CECs that can be obtained from attending the above.
4	Maintain current CPR-AED Certifications	Fact: For each minute the defibrillation (AED) is delayed, victim's chance of survival is reduced 7-10%.
5	Comply with all applicable business, employment and intellectual property Laws	Maintain high integrity, be truthful in communication with clients and fellow healthcare professionals and not mislead in impressions on credentials, sponsorships and any out of scope activities.

CODE OF ETHICS (CON'T)

Code		Expectations
6	Maintain confidentiality of all client/participation information	Protect confidentiality of client information such as contact data, medical records, health history and ensure that only appropriate individuals have access to it. Information regarding the client's progress cannot be revealed to third party members without the client's permission.
7	Refer client/participants to more qualified health professionals	When the activity is out of scope of a personal trainer as listed in the ACE scope of practice
8	Uphold and enhance public appreciation and trust for the fitness and health industry	Do not misrepresent yourself in commercial marketing. Uphold good practices even if not in your practice if you observe others in the facility.
9	Establish and maintain clear professional boundaries	Inform client about purpose of the touching or seek permission. Maintain a coach-client, educator-participant relationship.

CREDENTIALING

- Professional responsibilities and ethics
 - Primary purpose of professional certification programs is to **protect the public from harm**
 - Ethics: standards of conduct that guide decisions and actions based on duties derived from core values
- [NCCA accreditation](#) is a third-party standard for accreditation of certifications for fitness professionals.



CONTINUING EDUCATION

- CEUs (continuing education units) or CECs (continuing education credits) required to maintain certification
- Best options for continuing education and career development
 - Clinics, conferences, and conventions
 - Coursework: specialized courses from schools and organization or employer's internal training department
 - Completed or renewed CPR, AED, or First Aid Training
 - Published research in peer-reviewed journals
 - Served on an ACE Committee
 - Authored fitness-related articles, books, book chapters, peer-reviewed journal articles, or a correspondence course
 - Attended a clinical observation of surgical procedures that can enhance the understanding of human systems that relate to your certification
 - Completed an internship in a fitness or related setting, if it was within the ACE Scope of Practice
 - Served the community in a fitness-related outreach event

THE HEALTHCARE CONTINUUM



Nutritional Support



Mental Health



“Gatekeeper” – Physician /
Nurse Practitioner



Alternative
Healthcare (Licensed)



Rehabilitation Professionals



Trainers / Coaches
/ Instructors

Figure 1-3: Specialty Areas within Allied Healthcare

SUMMARY



The ACE Certified Personal Trainer: definition.



Scope of practice defines a unique profession dedicated to helping people improve their fitness, health, and quality of life through physical activity.



The ACE Code of Ethics outlines expected conduct expected from its certified professionals.



Continuing education: use the right resources

CHAPTER 16
LEGAL GUIDELINES AND
BUSINESS CONSIDERATIONS

CONTENT COVERED



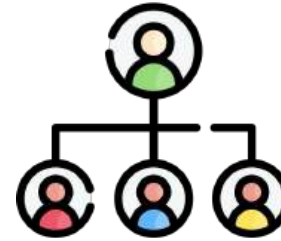
Sole Proprietorship, Partnership, Corporations, Advantages and Disadvantages (Pg 740, Table 16-1)



Record Keeping – Correspondence: HIPAA (Pg 761, Figure 16-4)



Liability Insurance – Professional, Umbrella, Product, Keyman Insurance



Employees VS Independent Contractors (Pg 747)



Legal Forms – Agreements to Participate, Informed Consent, Waivers, Inherent Risk (Pg 752, Tables 16-1, 16-2 & 16-3)



Legal Responsibilities – Facilities, Equipment, Supervision, Instruction (Pg 762)



Other Business Concerns – Social Media (Pg 776)

BUSINESS STRUCTURE

Type	Advantages	Disadvantages
Sole Proprietorship	• Easily created and managed • Flow through taxation	• Personal liability • Start up Capital
Partnership	• Easily created • Flow through taxation	• Potential disputes • Personal liability
S-Corps (Subchapter S-Corporation)	• Easily created • Limited liability	• Limited number investors • Cost of formation and operation
LLC/LLP (Limited Liability Company / Limited Liability Partnership)	• Easily created • Limited liability	• Operating standards differ in different countries/states • Need local legal guideline
C-Corps (Subchapter C-Corporation)	• Limited liability • Unlimited investors	• Cost of formation and operation • Double taxation

Table 16-1: Advantages and Disadvantages of Various Business Structures

EMPLOYEES VS INDEPENDENT CONTRACTORS

	Independent Contractor Status	Employee Status
Work Details	More control over work details	Employee create schedules, specific materialise to use and oversee procedures
Payment	Payment by the job	Regularly scheduled payments e.g monthly salary
Length of Relationship	Short periods	Ongoing relationship
Training and Retraining	Fast start up, no initial or ongoing training	Initial and ongoing training planned
Equipment	Own	By employer
Number of Clients Nature of Work	Serve multiple clients Individualised depending on your clients	Single employer typically Work is integrated to business model – immediate attention needed

Table 16-3: Independent Contractors versus Employees

CONTRACTS

4 Elements of a Binding Contract

An offer and acceptance with mutual agreement of terms

Consideration (an exchange of valuable items such as money for services)

Legality (acceptable under the law)

Ability of parties to enter into a contract with respect to legal age and mental capacity

CONTRACTS

- “Statute of Frauds”
 - An agreement that involves real estate or goods or services worth **\$500 or more**, or requires **more than one year to complete**, a written contract is required for it to be valid.

NEGLIGENCE

[PG 751 AND 759]



Act of commission and omission.

Some situations that may happen:

1. Not spotting (omission)
2. Inappropriate exercises which may aggravate existing injuries
3. Incompetence in Program Design

Types of Negligence

- Ordinary negligence
 - Failure to act as a reasonable prudent person
- Gross Negligence
 - Recklessness or a willful disregard for the safety of others
- Contributory Negligence
 - Both parties are considered at fault for the claim in question
- Comparative Negligence
 - Apportion guilt and any subsequent award for damages

NEGLIGENCE CLAIMS

Proof (evidence) of certain elements by the plaintiff against the defendant:

1. Duty
2. Breach of duty
3. Harm or damage
4. Proximate cause (between an act or failure to act and some harm), and



ADHERENCE TO INDUSTRY STANDARDS AND GUIDELINES



IMPORTANT LEGAL FORMS



Agreement to Participate



Informed Consent



Waivers

Resources : Download forms in ACE Website exclude above as attorney/legal professional advised for actual form. <https://www.acefitness.org/fitness-certifications/ace-answers/#forms>

FORM 1: AGREEMENT TO PARTICIPATE

"I, _____, have enrolled in a program of strenuous physical activity including, but not limited to, high-intensity interval training, weight training, stationary bicycling, and the use of various aerobic-conditioning machinery offered by [name of personal trainer and/or business]. I am aware that participating in these types of activities, even when completed properly, can be dangerous. I agree to follow the verbal instructions issued by the personal trainer. I am aware that potential risks associated with these types of activities include, but are not limited to, death, serious neck and spinal injuries that may result in complete or partial paralysis or brain damage, serious injury to virtually all bones, joints, ligaments, muscles, tendons, and other aspects of the musculoskeletal system, and serious injury or impairment to other aspects of my body, general health, and well-being.

Because of the dangers of participating, I recognize the importance of following the personal trainer's instructions regarding proper techniques and training, as well as other organization rules.

I am in good health and have provided verification from a licensed physician that I am able to undertake a general fitness-training program. I hereby consent to first aid, emergency medical care, and admission to an accredited hospital or an emergency care center when necessary for executing such care and for treatment of injuries that I may sustain while participating in an exercise-training program.

Namely for small group activities, high intensity workouts where the personal trainer cannot do personalised assessments or adjustments for each participant

Example of an Agreement to Participate

FORM 2: INFORMED CONSENT

2. Risks

It is my understanding and I have been informed that there exists the possibility of adverse changes during the actual test. I have been informed that these changes could include abnormal blood pressure, fainting, disorders of heart rhythm, stroke, and very rare instances of heart attack or even death. Every effort, I have been told, will be made to minimize these occurrences by preliminary examination and by precautions and observations taken during the test. I have also been informed that emergency equipment and personnel are readily available to deal with these unusual situations should they occur. I understand that there is a risk of injury, heart attack, stroke, or even death as a result of my performance of this test, but knowing those risks, it is my desire to proceed to take the test as herein indicated.

3. Benefits to Be Expected and Alternatives Available to the Exercise Testing Procedure

The results of this test may or may not benefit me. Potential benefits relate mainly to my personal motives for taking the test (e.g., knowing my exercise capacity in relation to the general population, understanding my fitness for certain sports and recreational activities, planning my

It is not a liability waiver, usually can incorporate the contents of an Agreement to Participate and specifically inform on the risks associated with the activity

Example of an Informed Consent

FORM 3: WAIVERS

I, _____, through the purchase of training sessions, have agreed to voluntarily participate in an exercise program, including, but not limited to, cardiorespiratory, muscular, and flexibility training under the guidance of [name of personal trainer and/or business]. I hereby stipulate and agree that I am physically and mentally sound and currently have no physical conditions that would be aggravated by my involvement in an exercise program. I have provided verification from a licensed physician that I am able to undertake a general fitness-training program.

I understand and am aware that physical-fitness activities, including the use of equipment, are potentially hazardous activities. I am aware that participating in these types of activities, even when performed properly, can be dangerous. I agree to follow the verbal instructions issued by the personal trainer. I am aware that potential risks associated with these types of activities include, but are not limited to: death, fainting, disorders in heartbeat, serious neck and spinal injuries that may result in complete or partial paralysis or brain damage, serious injury to virtually all bones, joints, ligaments, muscles, tendons, and other aspects of the musculoskeletal system, and serious injury or impairment to other aspects of my body, general health, and well-being.

Legal contract that protects the
Personal Trainer from being sued

Example of a Waiver

RECORD KEEPING



Medical History

Establish a base line of the client's health condition.



Exercise Record

Needs to be current and specific notations for any changes such as new onset of pain or discomfort. This helps PT to keep the program design relevant incorporating changes to client's exercise change journey.



Incident Report

Client safety is number 1 priority. This incident report should be properly documented for legal proceedings if need be.



Correspondence

1996 Health Insurance Portability and Accountability Act (HIPAA) maintaining the privacy of medical records. (Refer to Pg 763, Figure 16-4)

LEGAL RESPONSIBILITIES

[PG 762-769]



Pointers to note:

- Ensure facilities used are free from hazards
- Inspect physical environment in gym every day (E.g. Uneven flooring, sufficient free space between clients, functional lighting, ventilation (air conditioning and heating) and proximity to drinking water and bathrooms.)
- Remove equipment that is deemed unsafe
- Know local laws prior to using public spaces and inspect for unusual dangers
- Ensure client wear proper clothing and shoes
- General supervision is required in gym/fitness studio settings to ensure safety
- Specific supervision likely only possible in 1-to-1 sessions which cater to individual's needs
- Never leave a client during a training session
- Only have physical contact if it is justified and essential
- Should explain any assessment's purposes and seek consent before conducting

LIABILITY INSURANCE

General Liability

Professional Liability

LIABILITY INSURANCE

Related to activities



Professional



Umbrella

Wider coverage in
addition to professional
insurance

Keyman



For business
partnerships,
corporations

Product



For PTs selling products or
middleman selling

OTHER BUSINESS CONCERNS WITH LEGAL IMPLICATIONS



Marketing Activities

- Should associate only with those that maintain legal and ethical standards
- Ethical marketing practices that attract and retain clients
- Should not have “super fine print footnotes”



Social Media

- Can work for you and against you
- Must always ask for permission or include in Agreement to Participate clause before posting personal information or photos

RISK MANAGEMENT

	Frequency of occurrence		
Severity of Injury or Financial Impact	HIGH OR OFTEN	MEDIUM OR INFREQUENT	LOW OR SELDOM
HIGH OR VITAL	Avoid, Transfer	Avoid or transfer	Transfer
MEDIUM OR SIGNIFICANT	Avoid, Transfer	Transfer, reduce, or retain	Transfer, reduce, or retain
LOW OR INSIGNIFICANT	Retain, reduce	Retain	Retain

SUMMARY

- Business structure and their pros and cons
- Employee vs. independent contractor
- Negligence and standard of care
- Legal forms and their uses
- Professional insurance
- Legal considerations of IP uses, marketing, social media, transportation, facility, equipment, etc.
- Risk management

